

SALIENT FEATURES OF THE INDIAN CONSTITUTION

Origin -> architecture -> institutions -> tensions -> answer route

01 ORIGIN AND DEVELOPMENT

- 1919 experiments -> Government of India Act 1935 machinery
- Nationalist choices -> sovereignty, rights, welfare, representation
- Constituent Assembly 1946-49 -> selection, adaptation, rejection
- 1950 commencement -> republic, franchise, responsible government
- Later amendments and doctrine recalibrate the architecture
- TRAP: original features and later additions must be distinguished.

02 WHAT A SALIENT FEATURE EXPLAINS

Creates power: legislature, executive and courts

Limits power: rights, review and rule of law

Feature = provisions + institutions + values + practice

Distributes power: Union, States and local institutions

Directs power: DPSP, welfare and social transformation

LIMIT: salient features are not a closed basic-structure list.

03 WRITTEN DETAIL AND CHANGE

- 1949: Preamble | 395 Articles | 22 Parts | 8 Schedules
- Current Article totals require date and counting qualification
- Length: diversity | 1935 Act | Union-State detail | legal specificity
- Change: simple majority outside 368 | special majority
- Federal matters: special majority + at least half the States
- No referendum; no joint sitting; basic structure bars destruction.

04 BORROWED, ADAPTED, REJECTED

1935 Act -> machinery; colonial legitimacy rejected

USA -> rights/review; presidentialism/dual citizenship rejected

USSR Duties | France republic | South Africa amendment | Japan Art 21

Britain -> cabinet/rule of law, monarchy/sovereign Parliament rejected

Ireland DPSP | Canada strong Centre | Australia Concurrent List

VERDICT: borrowed ancestry, original design.

05 FEDERAL BALANCE

FEDERAL: two governments | lists | supremacy | rigidity | courts

Article 1: Union of States; no compact-based secession

ASYMMETRIC: Fifth/Sixth Schedules | Article 371 series

CENTRALISING: residuary power | Governors | citizenship | AIS

COOPERATIVE: Finance Commission | Inter-State Council | GST Council

Wheare: quasi-federal; Austin: cooperative federalism.

06 PARLIAMENTARY RESPONSIBILITY

- People -> Lok Sabha/Assembly -> Council of Ministers -> administration
- Nominal head + real executive | majority leadership
- Article 75 collective responsibility to Lok Sabha
- Ministers in legislature | confidence | possible dissolution
- GAIN: coordination and daily accountability
- RISK: disciplined majority and executive dominance.

07 CHECKS, RULE OF LAW, SUPREMACY

Separation markers: 50 | 121/211 | 122/212 | 361

Review/remedies: Articles 13, 32 and 226

CONSTITUTION

Overlap: ordinances 123/213 | delegated law |

Ram Jawaya: no rigid separation

Constitution supreme: competence + procedure + rights + remedies | Maneka: Article 21 procedure must be fair, just and reasonable.

08 JUDICIARY AND NORMATIVE TRIANGLE

Integrated courts: Supreme Court -> High Courts ->

Part III Rights -> enforceable liberty and equality

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Independence: tenure, removal, service and financial

Part IV DPSP -> welfare and social-economic

Part IV-A Duties -> civic responsibility | Minerva Mills: harmony of Parts III and IV.

09 IDENTITY, DEMOCRACY, INTEGRATION

Sovereign | Socialist | Secular | Democratic | Republic

Secularism: equal citizenship + principled State engagement

Single citizenship + integrated courts/services within federalism

42nd (1976): Socialist, Secular and Integrity added

Adult franchise from start; 61st (1988): voting age 21 -> 18

No constitutionally declared national language.

10 BODIES, EMERGENCIES, THIRD TIER

ECI 324 | CAG 148-151 | PSCs 315-323 | Finance Commission 280

352: war/external aggression/armed rebellion

73rd/74th: Parts IX/IX-A + Schedules 11/12

Safeguards differ body by body

356: State constitutional failure | 360: financial threat

97th + Rajendra N. Shah: State-co-op limit; multi-State survives.

11 CONSTITUTIONAL MORALITY

Ambedkar/Grote -> fidelity to constitutional forms

Rule-bound power | institutional restraint | public

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Text + structure + procedure + values

Dignity and minority protection against majoritarian

Navej | Sabarimala | NCT Delhi (2018) illustrations | LIMIT: never a licence for personal judicial morality.

12 PYQ AND ANSWER ROUTE

Direct Mains: 2019 checks/balances | 2021 morality

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Direct Prelims: 2018 Q40/Q45 | 2020 Q7

MASTER VERDICT

A carefully adapted architecture of authority, restraint, representation and transformation - sustained by institutions and constitutional morality.